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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF 1008 B
RENEWED MFL TAC**

(CCP § 1008, subd. (b))

Dept.: 610
Date: June 24, 2026

**PLAINTIFF'S MEMORANDUM OF POINTS AND AUTHORITIES IN
SUPPORT OF RENEWED MOTION FOR LEAVE TO FILE THIRD
AMENDED COMPLAINT (CCP SECTION 1008(B))**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 (serve
by Tue, June 2, 2026 per CCP section 1005(b)) **Filed by:** Plaintiff Dylan Franciscus Rosario,
Self-represented

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I. INTRODUCTION

This is a renewed application under Code of Civil Procedure section 1008, subdivision (b), for an order granting Plaintiff Dylan Franciscus Rosario leave to file a Third Amended Complaint (“TAC”). It is procedurally distinct from, and does not seek vacatur of, this Court’s April 30, 2026 minute order denying Plaintiff’s prior Motion for Leave to File a Second Amended Complaint (“MFL-SAC”). It is brought on the basis of NEW facts, circumstances, and law that either did not exist at the time of the original MFL-SAC, or could not with reasonable diligence have been presented in connection with that motion. (CCP section 1008(b); see *Graham v. Hansen* (1982) 128 Cal.App.3d 965, 970.)

The April 30, 2026 denial was procedural only. It did not reach the merits of the proposed amended pleading and did not hold that any cause of action was legally insufficient. Plaintiff’s accompanying Declaration explains, with the specificity required by section 1008(b), that three discrete new pillars now exist that did not exist on the April 30, 2026 line: (1) the surfacing of *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468 as published, controlling California Court of Appeal authority directly addressing the leave-to-amend / anti-SLAPP sequencing problem; (2) the May 12, 2026 anti-SLAPP order in the companion 801 action; and (3) the docketed defense MFL-SAC Opposition representation that “no such authority exists,” which is now provably false in light of *JKC3H8*.

These new pillars, taken together, materially change the legal posture against which leave should be evaluated, and they trigger the renewed-application path that section 1008(b) was designed for. The proposed Third Amended Complaint cures the procedural defect identified by the April 30, 2026 order, satisfies the substantive requirements of CCP sections 472, 473(a)(1), 576, and 425.16(f),

1 and complies with California Rules of Court, rule 3.1324. Defendant cannot demonstrate concrete
2 prejudice. The liberal amendment policy of California law therefore controls, and the renewed
3 application should be granted.

4

5 **II. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING**
6 **LINE**

7 By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk),
8 this Court continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department
9 302, and directed: “All parties immediately to provide courtesy copies of their filings per SF Local
10 Rule 2.7B with a cover letter reflecting the new hearing date.” The parties subsequently stipulated,
11 and the Court ordered, that all pending Dept. 302 matters in this action be consolidated to the June
12 24, 2026 calendar.

13 This Renewed Motion is properly placed on that consolidated June 24, 2026 line: it is set for
14 hearing 16 court days plus two court days for electronic service after timely service, the proof of
15 service shows service on or before Tuesday, June 2, 2026, and the moving papers are tendered in
16 compliance with CCP section 1005(b) and Cal. Rules of Court, rules 3.1110 and 3.1112. Plaintiff
17 additionally invokes this Court’s inherent authority under CCP section 187 to manage its calendar
18 and to receive and adjudicate renewed applications on the consolidated cohort.

19

20 **III. THE SECTION 1008(B) STANDARD AND WHY THIS APPLICA-**
21 **TION IS PROCEDURALLY DISTINCT FROM A SECTION 1008(A)**
22 **RECONSIDERATION**

23 **A. Section 1008(b) authorizes a separate renewed application based on new facts, circum-**
24 **stances, or law.**

25 Code of Civil Procedure section 1008, subdivision (b) provides in pertinent part: “A party who
26 originally made an application for an order which was refused in whole or part, or granted con-
27 ditionally or on terms, may make a subsequent application for the same order upon new or dif-

ferent facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” The Legislature thus expressly contemplates a second, separate, freshly noticed application for the same relief when the moving party can identify new facts, circumstances, or law. (CCP section 1008(b).)

B. Section 1008(b) is procedurally distinct from a section 1008(a) motion for reconsideration.

A motion for reconsideration under CCP section 1008(a) must be filed within 10 days after service upon the party of written notice of entry of the order, must be directed to the judge who made the order, and must be supported by an affidavit identifying new or different facts, circumstances, or law. (CCP section 1008(a).) A renewed application under CCP section 1008(b), by contrast, is a new motion for the same order; it is not constrained by the 10-day clock of subdivision (a); it does not seek vacatur of the prior order; and it is independently noticed under CCP section 1005(b) on a fresh hearing line. (Compare CCP section 1008(a) with CCP section 1008(b); *Graham v. Hansen*, supra, 128 Cal.App.3d at p. 970 [recognizing the distinction]; *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833 to 834 [discussing the structural unity of section 1008 while preserving the distinct functions of subdivisions (a) and (b)].)

This Renewed Motion is brought solely under subdivision (b). It does not seek reconsideration of the April 30, 2026 order. It does not seek vacatur of any prior ruling. It seeks a fresh, freshly noticed order granting leave to file the Third Amended Complaint, on a renewed showing of new facts, circumstances, and law.

C. The diligence requirement.

Section 1008(b) requires the moving party to show by affidavit (i) what application was made before, (ii) when and to what judge, (iii) what order or decisions were made, and (iv) what new or different facts, circumstances, or law are claimed to be shown. (CCP section 1008(b).) The settled gloss on subdivision (b), borrowed from subdivision (a)’s diligence jurisprudence, is that the new facts, circumstances, or law must be facts that either did not exist at the time of the original application or could not with reasonable diligence have been presented in connection with it. (See

1 New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212; Mink v. Superior Court
2 (1992) 2 Cal.App.4th 1338, 1342.) The accompanying Declaration of Dylan Franciscus Rosario
3 makes the requisite diligence showing for each of the three new pillars identified below.

4 5 **IV. NEW FACTS, CIRCUMSTANCES, AND LAW (THE THREE PIL-** 6 **LARS)**

7 **A. Pillar 1: JKC3H8 v. Colton as newly surfaced controlling authority.**

8 JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 (Third Appellate District; Hoch, J.; review denied)
9 is published California Court of Appeal authority that squarely addresses whether a plaintiff may
10 amend a complaint in the face of a contemplated or pending anti-SLAPP motion, and that recog-
11 nizes the trial court's retained pleading-management discretion under CCP sections 472, 473(a)(1),
12 576, and 425.16(f). (JKC3H8, 221 Cal.App.4th at pp. 471 to 472, 477 to 478, 479.)

13 JKC3H8 had not been brought to this Court's attention in connection with the April 30, 2026
14 MFL-SAC line. It surfaced as a discrete legal pillar in connection with Plaintiff's preparation for
15 the consolidated June 24, 2026 cohort, and was first formally tendered to this Court by Plaintiff's
16 Notice of Supplemental Authority (JKC3H8 v. Colton) and the companion Rule 3.3(a)(2) Notice of
17 Directly Adverse Authority, both filed May 21, 2026 in connection with the June 24, 2026 hearing
18 line. The post-denial emergence of this authority within the operative briefing of this action is itself
19 a new circumstance for purposes of CCP section 1008(b). (See New York Times Co. v. Superior
20 Court, supra, 135 Cal.App.4th at p. 212 [later-decided or later-located controlling authority may
21 constitute new law for subdivision (b) purposes].)

22 The Declaration of Dylan Franciscus Rosario explains the diligence showing: prior preparation
23 focused on the page-length defect identified by the April 30, 2026 order; the JKC3H8 line of
24 authority was not, with reasonable diligence, presented in the original MFL-SAC papers because
25 the pleading-management / anti-SLAPP sequencing argument had not yet been frontally tendered
26 by Defendant as the operative theory of opposition that it later became in the docketed defense
27 MFL-SAC Opposition.

1 **B. Pillar 2: The May 12, 2026 anti-SLAPP order in companion case CGC-25-631801.**

2 On May 12, 2026, in the companion action Rosario v. Abdelhalim, CGC-25-631801 (Dept. 302),
3 this Court entered an order on the anti-SLAPP motion that materially affects the management
4 posture of the consolidated Dept. 302 calendar in this action. (Verify Transaction ID on SFTC
5 portal.) That order, entered after the April 30, 2026 denial in this action, is a new circumstance
6 within the meaning of section 1008(b). It bears on the trial court's pleading-management discretion
7 under CCP section 425.16(f) and on the orderly sequencing of the anti-SLAPP, demurrer, and
8 leave-to-amend motions on the June 24, 2026 cohort line.

9 The companion 801 order could not, by definition, have been presented in connection with the
10 April 28 to 30, 2026 MFL-SAC briefing, because the 801 order had not yet been entered. (CCP
11 section 1008(b); New York Times Co., supra, 135 Cal.App.4th at p. 212.)

12 **C. Pillar 3: The docketed defense MFL-SAC Opposition representation that “no such au-**
13 **thority exists.”**

14 Defendant's MFL-SAC Opposition, filed April 23, 2026 in this action, contains on its Introduction
15 page the verbatim representation: “Plaintiff cites no authority to support the proposition that he can
16 file his Motion for Leave to Amend, as no such authority exists to support his motion.” Plaintiff
17 has lodged a contemporaneous Request for Judicial Notice of that docketed page in connection
18 with the June 24, 2026 line. (See RFJN re Defense MFL-SAC Opposition Introduction Page, filed
19 May 21, 2026.)

20 After the April 30, 2026 denial, JKC3H8 v. Colton has surfaced as published, controlling Califor-
21 nia Court of Appeal authority directly supporting the very proposition Defendant said did not exist.
22 The juxtaposition of (i) the docketed defense representation that “no such authority exists” and (ii)
23 the post-denial emergence of JKC3H8 in the operative record is, itself, a new circumstance for sec-
24 tion 1008(b) purposes. It materially affects the diligence and good-faith showings the Court must
25 weigh on a renewed application: Plaintiff's prior preparation reasonably did not anticipate that the
26 operative defense theory would be a categorical denial of the very authority that now controls.

1 **D. The three pillars, taken together, satisfy section 1008(b).**

2 Section 1008(b) does not require any single new fact, circumstance, or law to be by itself dispos-
3 itive. It requires only that the moving party identify what is new, when it came to be, and why
4 it could not with reasonable diligence have been presented before. (CCP section 1008(b); New
5 York Times Co., supra, 135 Cal.App.4th at p. 212.) The three pillars above, taken together and
6 separately documented in the accompanying Declaration, comfortably satisfy that standard.

7
8 **V. THE PROPOSED THIRD AMENDED COMPLAINT CURES THE**
9 **“NO LEAVE” DEFECT AND SATISFIES CCP SECTIONS 472, 473(A)(1),**
10 **576, AND 425.16(F)**

11 **A. The “no leave” defect identified by the April 30, 2026 denial is cured.**

12 The April 30, 2026 denial of the prior MFL-SAC was procedural only and did not reach the merits
13 of the proposed amended causes of action. The new proposed pleading lodged with the April 28,
14 2026 MFL-TAC, and as further refined here, is the Third Amended Complaint. The TAC has been
15 drafted to comply with all applicable formatting and page-limitation requirements that drove the
16 April 30 procedural denial, and the supporting declaration under CRC 3.1324(b) has been prepared
17 to comply with that rule’s specific requirements. The “no leave” defect identified by the April 30
18 denial is therefore cured on the face of the renewed papers.

19 **B. CCP section 472 (amendment of right and by leave).**

20 CCP section 472 confirms that a party may amend a pleading once as a matter of course, and
21 otherwise by leave. The TAC is sought by leave under section 472 and the companion sections
22 below. The proposed pleading does not add new parties; it refines and supplements the operative
23 theories in response to identified pleading objections, and adds a stand-alone declaratory relief
24 count under CCP section 1060.

25 **C. CCP section 473, subdivision (a)(1) (leave in furtherance of justice).**

26 CCP section 473(a)(1) provides that the court “may, in furtherance of justice, and on any terms
27 as may be proper, allow a party to amend any pleading.” The “furtherance of justice” standard

1 is broadly construed and embodies the California preference for resolution of disputes on their
2 merits rather than on procedural technicalities. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th
3 739, 761; Harding v. Collazo (1986) 177 Cal.App.3d 1044, 1054.) The TAC is precisely the
4 type of amendment section 473(a)(1) is designed to facilitate: it cures specific pleading defects
5 identified by Defendant in the April 13, 2026 Demurrer while preserving all substantive theories.

6 **D. CCP section 576 (amendment before or after trial in furtherance of justice).**

7 CCP section 576 provides that “any judge, at any time before or after commencement of trial,
8 in the furtherance of justice, and upon such terms as may be proper, may allow the amendment
9 of any pleading or pretrial conference order.” Section 576 reinforces section 473(a)(1)’s liberal
10 amendment policy and confirms the trial court’s pleading-management discretion at every stage.
11 This case is squarely within the pleading-management window: no Answer has been filed; no
12 trial date has been set; discovery is stayed under CCP section 425.16(g) pending resolution of the
13 anti-SLAPP motion.

14 **E. CCP section 425.16, subdivision (f) (express management authority).**

15 CCP section 425.16(f) provides that “[t]he special motion may be filed within 60 days of the service
16 of the complaint or, in the court’s discretion, at any later time upon terms it deems proper.” That
17 discretionary management authority is not a one-way ratchet for defendants; it operates alongside
18 the trial court’s general pleading-management discretion to ensure that the anti-SLAPP procedural
19 framework does not be used to foreclose a meritorious amendment that itself bears on the grava-
20 men analysis. (See JKC3H8 v. Colton, supra, 221 Cal.App.4th at pp. 477 to 478 [express limit
21 on amendment used to subvert or avoid an anti-SLAPP ruling; the limit is not a wholesale with-
22 drawal of the trial court’s discretion to manage pleadings under sections 472, 473(a)(1), 576, and
23 425.16(f)].)

24 **F. JKC3H8 confirms the trial court’s retained pleading-management authority.**

25 JKC3H8 v. Colton recognizes both (i) that an amendment removing protected-activity allegations
26 from the operative pleading may render an anti-SLAPP motion directed at the prior pleading moot,
27 and (ii) that the trial court retains its ordinary pleading-management authority under CCP sections
28 472, 473(a)(1), 576, and 425.16(f). (JKC3H8, 221 Cal.App.4th at pp. 471 to 472, 477 to 478, 479.)

JKC3H8 thus supplies the doctrinal floor under the renewed application here: leave to file the TAC fits comfortably within the management authority the Court of Appeal expressly preserved.

VI. CRC 3.1324 IS INDEPENDENTLY SATISFIED

California Rules of Court, rule 3.1324(a), requires that a motion for leave to amend include a copy of the proposed amended pleading and identify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. Rule 3.1324(b) requires that the supporting declaration set forth each of the four items.

Plaintiff has satisfied each prong:

- (1) **Effect.** The TAC adds pleading specificity to the existing causes of action and adds a stand-alone declaratory relief count under CCP section 1060; it does not add new defendants and does not inject wholly new theories.
- (2) **Necessary and proper.** Defendant's April 13, 2026 Demurrer identified specific pleading deficiencies. The TAC cures those deficiencies while preserving all substantive theories.
- (3) **When discovered.** The factual basis for the TAC amendments was known to Plaintiff as of the date of the FAC and has been supplemented by the certified trial-record materials (RT, audio, CAD logs) obtained through the lodging process in this case.
- (4) **Why not requested earlier.** The April 30, 2026 denial of the prior MFL-SAC on procedural grounds created the renewed need; the renewed papers were prepared as soon as the three new pillars described in Section IV emerged in the operative record.

VII. NO PREJUDICE TO DEFENDANT; LIBERAL AMENDMENT POLICY CONTROLS

The California Supreme Court has long held that "if the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) The burden

1 falls on the party opposing the amendment to demonstrate concrete prejudice. Mere delay, without
2 prejudice from the delay, is not grounds for denial. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d
3 486, 490.) Any doubts must be resolved in favor of the moving party. (*Morgan v. Superior Court*
4 (1959) 172 Cal.App.2d 527, 530.)

5 Defendant cannot demonstrate concrete prejudice here:

- 6 • **Pleading stage.** This case remains entirely in the pleading stage. Defendant has never filed
7 an Answer to the FAC. No deposition has been taken. No trial date has been set.
- 8 • **Discovery stay.** The discovery stay under CCP section 425.16(g) has limited all formal dis-
9 covery pending resolution of the anti-SLAPP motion; Defendant has not been required to
10 produce documents or to defend depositions during the period of the proposed amendment
11 cycle.
- 12 • **No new parties; no wholesale new theories.** The TAC does not add new defendants or new
13 legal theories; it refines and supplements existing theories in response to specific pleading
14 objections.
- 15 • **Trial calendar is open.** The July 8, 2026 CMC has not yet resulted in a trial date. Any trial
16 date set at the July 8, 2026 CMC can accommodate the additional pleading cycle without
17 prejudicing Defendant.

18 On this record, Kittredge controls and leave should be granted.
19

20 **VIII. THE RENEWED MOTION MATERIALLY ADVANCES ORDERLY** 21 **DISPOSITION OF THE JUNE 24, 2026 COHORT**

22 The consolidated June 24, 2026 calendar includes (without limitation) Defendant's Special Motion
23 to Strike pursuant to CCP section 425.16 (seqs 015 to 018), Defendant's Demurrer to Plaintiff's
24 First Amended Complaint (seqs 019 to 023), and Plaintiff's Motion to Strike the May 6, 2026 Reply
25 Declaration of Tyler J. O'Connell (Transaction ID 79429443). Granting the renewed application
26 would place the operative pleading on a proper footing for that consolidated line and would permit
27 prong-one gravamen analysis under *Park v. Board of Trustees* (2017) 2 Cal.5th 1057 and *Baral*
28 *v. Schnitt* (2016) 1 Cal.5th 376 to proceed against the operative pleading rather than against a

1 superseded one. This is precisely the orderly management contemplated by CCP sections 472,
2 473(a)(1), 576, and 425.16(f) and confirmed by JKC3H8 v. Colton, supra, 221 Cal.App.4th at
3 pp. 477 to 478.

4

5 **IX. PRAYER**

6 For the foregoing reasons, Plaintiff respectfully requests that the Court enter an order:

- 7 1. GRANTING this Renewed Motion under CCP section 1008(b);
- 8 2. GRANTING leave to file the proposed Third Amended Complaint lodged with the original
- 9 MFL-TAC and as further refined by the renewed papers tendered herewith;
- 10 3. Directing the Third Amended Complaint to be filed and deemed served as of the date of the
- 11 order;
- 12 4. Setting a response deadline for Defendant consistent with CCP section 471.5; and
- 13 5. Granting such further relief as the Court deems just and proper.

14 A proposed order is lodged with the moving papers and is referenced herein.

15

16 **X. CLOSING**

17 This is a tightly scoped renewed application that does the modest, lawful work CCP section 1008(b)

18 was designed for. It honors the prior procedural ruling, it identifies three discrete new pillars, it

19 documents the diligence required by the statute, and it advances rather than disrupts the orderly

20 disposition of the consolidated June 24, 2026 cohort. Granting the renewed application places

21 the operative pleading where the liberal amendment policy of California law and the management

22 authority preserved by JKC3H8 v. Colton say it belongs.

23

24 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026

A handwritten signature in blue ink, appearing to read 'Francisco', with a stylized flourish at the end.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this memorandum.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1113(d)	Page limit for memorandum	Length within applicable limit	Page count
2	CRC 3.1113(b)	Required sections (facts, law, argument)	Organized sections in body	Memorandum body
3	CRC 3.1113(j)	Incorporation by reference where used	ROA placeholders in text	Body sections
4	CCP 1005(b)	Reply timing cross-reference where applicable	Reply deadline cited if applicable	Body